

Part 6

Appeals

(Part 6 replaced 77 of 1994 s. 12)

43. Interpretation

(1) In this Part—

Appeal Tribunal (上訴審裁小組) in relation to an appeal means the tribunal constituted under section 48 to hear and determine that appeal;

Chairman (主席) in relation to an Appeal Tribunal means the person appointed as its chairman under section 48(1);

functions (職能) includes powers and duties;

notice of appeal (上訴通知) means a notice of appeal given under section 47;

Secretary to the Appeal Tribunal (上訴審裁小組秘書) means the person appointed as such under section 46(2)(a).

(2) Any reference in this Part to the performance of a function includes the exercise of a power or discharge of a duty.

44. Appeals from decisions of Building Authority

(1) A person aggrieved by any decision made by the Building Authority in the exercise of a discretion conferred on him under this Ordinance may, except where this Ordinance provides otherwise, appeal from that decision in accordance with this Part and regulations made under section 38(1B).

(2) If—

(a) a decision appealed from under subsection (1) requires the carrying out of works; and

(b) a notice of appeal as regards that decision is given under section 47,

subject to subsection (3), with effect from the day the notice is so given, the Building Authority shall neither enforce nor permit the enforcement of such decision, until the appeal is disposed of or unless it is withdrawn or abandoned.

- (3) The Building Authority may enforce a decision referred to in subsection (2) or permit its enforcement where he is of the opinion that an emergency exists and that having regard to that emergency such enforcement is necessary and serves a notice on the appellant stating that due to an emergency the enforcement of the decision and the carrying out of works or other action is necessary.
- (4) The decision of the Building Authority that an emergency exists for the purposes of subsection (3) shall not be subject to an appeal under section 44.

45. Appeal Tribunal Panel

- (1) There shall be a panel to be known as the Appeal Tribunal Panel.
- (2) The Chief Executive shall appoint to the Appeal Tribunal Panel—
- (a) such persons as he considers suitable to serve as members of an Appeal Tribunal constituted under section 48; and
 - (b) persons with the qualifications referred to in section 48(2) to serve as Chairmen.
- (3) Each appointment under subsection (2) shall be for a period which shall not exceed 3 years and which shall be determined by the Chief Executive at the time of the appointment.

- (4) A member of the Appeal Tribunal Panel may resign his office by giving notice in writing to the Chief Executive.
- (5) A person who ceases to be a member of the Appeal Tribunal Panel shall be eligible for reappointment to that panel.
- (6) A notice of any appointment under this section shall be published in the Gazette.
- (7) The Chief Executive may by notice in writing remove from office any member of the Appeal Tribunal Panel whom he considers to be unsuitable to hold office as such member.

(Amended 62 of 2000 s. 3)

46. Secretary to the Appeal Tribunal

- (1) There shall be a Secretary to the Appeal Tribunal for the purpose of providing administrative services to an Appeal Tribunal.
- (2) The Secretary to the Appeal Tribunal shall be—
 - (a) appointed by the Secretary; *(Amended L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007; 16 of 2011 s. 29)*
 - (b) a public officer; and
 - (c) a person other than a member of the Appeal Tribunal Panel.

47. Notice of appeal

A person exercising the right of appeal conferred by section 44 shall give notice of appeal in the prescribed manner, appealing from the relevant decision, to the Secretary to the Appeal Tribunal, to be received by him not later than 21 days after the date notification of the decision is sent to him.

48. Appeal Tribunal

- (1) Where a notice of appeal is given under section 47, the Chief Executive shall appoint, from the Appeal Tribunal Panel, a tribunal consisting of a Chairman and not less than 2 members, for the purpose of hearing and determining the appeal to which the notice relates. (*Amended 62 of 2000 s. 3*)
- (2) The Chairman shall be a person who is qualified for appointment as a District Judge under section 5 of the District Court Ordinance (Cap. 336).
- (3) The majority of the persons consisting the Appeal Tribunal shall be persons other than public officers.
- (4) For the avoidance of doubt it is declared that where a public officer is a Chairman or a member of the Appeal Tribunal he shall, as regards the performance of his functions as such Chairman or member—
 - (a) act in his personal capacity only; and
 - (b) not be subject to any direction to which he might be subject in his capacity as a public officer.
- (5) The Chairman or any member of the Appeal Tribunal, who is not a public officer shall be paid such remuneration at such rate as the Chief Executive may determine. (*Amended 62 of 2000 s. 3*)

49. Preliminary hearing

- (1) The Appeal Tribunal may, in any case where it considers it appropriate to do so, hold a preliminary hearing to determine whether good cause has been shown for holding a full hearing.

- (2) If the Appeal Tribunal determines that good cause has not been shown for holding a full hearing it shall make an order dismissing the appeal but shall otherwise hold a full hearing.

50. Determination of appeal

- (1) The following shall apply in relation to the hearing and determination of an appeal or a preliminary hearing held under section 49—
- (a) every question shall be determined by the opinion of the majority of the members of the Appeal Tribunal;
 - (b) where there is an equality of votes, the Chairman shall have a casting vote;
 - (c) the Appeal Tribunal may—
 - (i) receive and consider any oral, documentary or other evidence, (including any written statement), whether on oath, affirmation or otherwise, and whether or not it would be admissible in evidence in proceedings in a court;
 - (ii) by summons issued in the prescribed manner, require any person to attend before it at any hearing to give evidence or to produce any document;
 - (iii) administer oaths or affirmations;
 - (iv) examine on oath, affirmation or otherwise any person attending before it and require such person to answer any question put by or with the consent of the Tribunal.
- (2) In determining an appeal, the Appeal Tribunal may make an order confirming, varying or reversing the decision that is appealed against or substituting therefor such other decision or make such other order as it thinks fit.

51. Power to award costs

- (1) Upon making an order under section 49(2) or 50(2) the Appeal Tribunal may make such order as to costs as it thinks fit.
- (2) Where there is more than one appellant, the Appeal Tribunal may apportion among them, the costs (if any) ordered against them.
- (3) The Appeal Tribunal shall not award any compensation or make an order for any other payment, other than an order for costs referred to in subsection (1).
- (4) Where an order for costs is made against the appellant the amount of the costs may be recovered by the Building Authority and the Building Authority shall cause a copy of the order to be served on the appellant.
- (5) Section 33 (except subsections (1), (2), (3), (5) and (8) thereof) shall apply as regards any such order for costs as if the references therein to a certificate of the Building Authority and costs certified by the Building Authority were references to an order for costs referred to in subsection (1) and the amount of the costs payable under such order, respectively.
- (6) Any costs awarded against the Building Authority under this section shall be paid out of the general revenue.

52. Representation

The following shall apply as regards appearance before the Appeal Tribunal at a hearing of an appeal (including a preliminary hearing held under section 49)—

- (a) a party (whether the Building Authority or any other party) may—
 - (i) be present and make representations;

- (ii) be represented either by counsel or a solicitor, or with the approval of the Chairman, by any other person authorized for the purpose by the party concerned in writing;
- (b) the Building Authority may be represented by a legal officer within the meaning of the Legal Officers Ordinance (Cap. 87).

53. Inspection

- (1) The Appeal Tribunal may, for the purpose of determining an appeal at any reasonable time—
 - (a) enter and inspect any land or premises it considers relevant for the purposes of the appeal; and
 - (b) make any opening on such land or premises or take such samples as it considers necessary.
- (2) The Appeal Tribunal may, as regards any appeal, direct a public officer to do anything which the Appeal Tribunal may do under subsection (1).
- (3) A public officer directed under subsection (2) may enter any land or premises which the Appeal Tribunal considers relevant for the purposes of an appeal and remove anything obstructing—
 - (a) his access to or inspection of the land or premises and make such openings or take such samples as the Appeal Tribunal considers necessary for the purposes of the appeal; or
 - (b) the access of the Appeal Tribunal to such land or premises for the purposes of subsection (1).

53A. Immunity

- (1) The Chairman or a member of an Appeal Tribunal performing any function under or pursuant to this Part shall have the same privileges and immunities a judge of the Court of First Instance has in relation to civil proceedings in that court.
- (2) A party to any hearing of an appeal (including a preliminary hearing held under section 49) or any witness, counsel, solicitor or legal officer appearing before an Appeal Tribunal shall have the same immunities or privileges such a party, witness, counsel, solicitor or legal officer respectively would have had in relation to civil proceedings in the Court of First Instance.

(Amended 25 of 1998 s. 2)

53B. Offences in respect of Appeal Tribunal

Any person who—

- (a) refuses or fails without reasonable excuse to comply with any lawful order, requirement or direction made or given by the Appeal Tribunal or the Chairman; or
- (b) disturbs or otherwise interferes with the proceedings of the Appeal Tribunal,

commits an offence and is liable to a fine at level 3 and to imprisonment for 6 months.

(Amended 20 of 2008 s. 30)

53C. Case stated

- (1) The Appeal Tribunal hearing an appeal may by way of a case stated refer to the Court of Appeal for its decision any question of law relating to the appeal.
- (2) A case stated under subsection (1) shall be so stated before the Appeal Tribunal determines the appeal and be signed

by the Chairman and the Tribunal shall not determine the relevant appeal until the decision of the Court of Appeal has been given.

- (3) Where the Court of Appeal decides a case stated under this section it shall cause a copy of the case together with a copy of its decision, to be sent to the Chairman and the Chairman shall, where appropriate, reconvene the relevant Appeal Tribunal which when reconvened shall determine the relevant appeal.

53D. Chairman's power to determine procedure

The Chairman may, as regards a particular hearing, determine the procedure in relation to a matter if provision has not been made in this Part or regulations under section 38(1B) for the procedure in respect thereof.
